

PART A**Welcome to Axis Max Life Insurance**

Date [Date of Issuance of Policy]
To <Name of the Policyholder>
<Address 1>
<Address 2>
<City> - <Pin Code>
<State>
G. O. Name: <G O Name>
Policy no.: <Policy number>
Contact No: <Telephone number>
Email id: <Email address>

Welcome Dear <Name of the Policyholder>,
Thank you for choosing Axis Max Life Insurance (formerly known as Max Life Insurance) as
Your bharosemand partner. We are committed to financially protect You and Your loved
ones. For them  .

We request You to go through the enclosed Policy contract for Axis **Max Life Saral Jeevan Bima** (A Non-linked Non-Participating Individual Pure Risk Life Insurance Plan) with Policy number <Policy number>.

Please also refer to the Customer Information Sheet reference no. for key information about
Your Policy.

What to do in case of errors On examination of the Policy (enclosed herewith), if You notice any mistake or error, proceed as follows:

1. Contact our customer helpdesk or Your agent immediately at the details mentioned below.
2. We will rectify the mistake/error and send an updated Policy to You .

Waiting Period This Policy will cover death due to accident only during the Waiting Period of 45 days from the Date of Commencement of Risk.

In case of the death of the Life Assured other than due to accident during the Waiting Period, an amount equal to 100% of all Premiums Paid excluding taxes, if any, shall be paid and the Sum Assured on Death shall not be paid.

Free look Cancellation You have the option to cancel it the Policy if You disagree with any of the Policy terms and conditions or otherwise with by sending written request, to Us, stating the reasons for Your objection. This request must be sent to Us within the Free Look Period of 30 days beginning from the date of receiving the Policy Document.

Upon receipt of Your request, if no claim has been made under the Policy, the Policy will terminate immediately and all rights, benefits and interests under the Policy will cease immediately. You will be entitled for refund of Premiums received by Us after deducting a proportionate risk Premium for the period of cover, stamp duty charges and the expenses incurred on medical examination of the Life Assured, if any, irrespective of the reasons mentioned.

Long term protection We are committed to giving You honest advice and offering You long-term savings, protection and retirement solutions backed by the highest standards of customer service. We will be delighted to offer You any assistance or clarification You may require about your Policy or claim-related services at the address mentioned below.

We value your association with us and assure You the best of our service, always.

Yours Sincerely,
Axis Max Life Insurance Limited

Suhail Ghai
Chief Digital Officer & Head Operations, Digital Technology

Agent's name/ Intermediary name and Code:

Mobile/Landline Telephone Number:

Address:

Axis Max Life Insurance Limited

Plot No. 90C, Sector 18, Udyog Vihar, Gurugram, 122015, Haryana, India

Registered Office: Plot No. 419, Bhai Mohan Singh Nagar, Railmajra, Tehsil Balachaur, District Nawanshahr, Punjab -144 533

Phone: 4219090 Fax: 4159397 (From Delhi and other cities: 0124) Customer Helpline: 1860 120 5577

Visit Us at: <https://www.axismaxlife.com> E-mail: service.helpdesk@axismaxlife.com

IRDAI Registration No: 104

Corporate Identity Number: U74899PB2000PLC045626

POLICY PREAMBLE

Axis MAX LIFE INSURANCE LIMITED

Regd. Office: 419, Bhai Mohan Singh Nagar, Railmajra, Tehsil Balachaur, District Nawanshahr, Punjab -144
533

Axis Max Life Saral Jeevan Bima

A Non-linked Non-Participating Individual Pure Risk Life Insurance Plan

UIN – [104N117V02]

Axis Max Life Insurance Limited has entered this contract of insurance on the basis of the information given in the proposal form together with the Premium deposit, statements, reports or other documents and declarations received from or on behalf of the Proposer for effecting a life insurance contract on the life of the person named in the Schedule.

We agree to pay the benefits under the Policy on the happening of the insured event, while the Policy is in force subject to the terms and conditions stated herein.

Axis Max Life Insurance Limited

Place of Issuance: Gurugram, Haryana

POLICY SCHEDULE
Policy: Axis Max Life Saral Jeevan Bima

Type of Policy: A Non-linked Non-Participating Individual Pure Risk Life Insurance Plan

UIN - [104N117V02]
Office

Policy No./ Date of Proposal:						Client ID:																									
Policyholder: PAN: Relationship with Life Assured: Date of Birth: Address (For all communication purposes):						Gender: Male/Female/Transgender Contact No.: Email:																									
Life Assured: Date of Birth: Age: Address:						Gender: Male/Female/ Transgender																									
Nominee(s): <table border="1"> <thead> <tr> <th>Nominee (s) Name</th> <th>Relationship of Nominee(s) with Policyholder</th> <th>Date of Birth of Nominee</th> <th>Age</th> <th>Gender</th> <th>% share</th> </tr> </thead> <tbody> <tr><td> </td><td> </td><td> </td><td> </td><td> </td><td> </td></tr> <tr><td> </td><td> </td><td> </td><td> </td><td> </td><td> </td></tr> <tr><td> </td><td> </td><td> </td><td> </td><td> </td><td> </td></tr> </tbody> </table>						Nominee (s) Name	Relationship of Nominee(s) with Policyholder	Date of Birth of Nominee	Age	Gender	% share																			Appointee (if Nominee is minor): Name: Relationship with Nominee	
Nominee (s) Name	Relationship of Nominee(s) with Policyholder	Date of Birth of Nominee	Age	Gender	% share																										
Date of Commencement of Risk: Date of Issuance of Policy:						Premium payment term variant: Single Premium Payment / Limited Premium Payment / Regular Premium Payment Premium Payment mode:																									
Premium Payment Method:						Cheque Draw Date: Bank Name: Bank Account Number:																									
Bank Account Details for Payouts						Bank Name: Bank Account Number:																									
Agent's name/ Intermediary name: Agent's code/ Intermediary code: Intermediary License No.: Email: Address: Mobile/Landline Telephone Number: Details of Sales Personnel (for direct sales only):																															
Rider Name	Variant	Rider Premium Payment Term				Rider Policy Term																									

List of coverage	Date of Maturity	Basic Sum Assured (INR)	Policy Term (in years)	Premium Payment Term (in years)	Annualised Premium A (INR)	Underwriting Extra Premium B (INR)	GST** and any other taxes, cesses & levies C (INR)	Loading for modal Premium D (INR)	Total Premium along with applicable taxes, cesses and levies payable as per Premium payment mode selected $E = [(A+B+C) * D]$ (INR)	Due Date when Premium is payable; Date when the Last Premium is payable
Base Policy	dd/mm/yyyy									

**GST includes IGST, SGST, CGST, UGST (whichever is applicable) and applicable cesses

Part – B**DEFINITIONS**

The definitions of terms/words used in the Policy Document are as under:

1. **“Age”** is the age of the Life Assured on the last birthday as on the Date of commencement of the Policy;
2. **“Annualized Premium”** is the total amount of Premium payable in a Policy Year excluding taxes, Rider Premiums, Underwriting extra Premiums and loadings for modal Premiums, ;
3. **“Appointee”** is the person to whom the proceeds/benefits secured under the Policy are payable if the benefit becomes payable to the Nominee and Nominee is minor as on the date of claim payment;
4. **“Assignee”** is the person to whom the rights and benefits are transferred by virtue of an Assignment;
5. **“Assignment”** is the process of transferring the rights and benefits to an “Assignee,” in accordance with the provisions of Section 38 of Insurance Act, 1938, as amended from time to time;
6. **“Assignor”** means the person who transfers the rights of the life insurance Policy to the Assignee;
7. **“Base Policy”** is that part of the Policy referring to basic benefit (benefits referred to in this Policy Document excluding benefits covered under Rider(s), if opted for);
8. **“Basic Sum Assured”** means the amount specified in the Schedule as opted by the Policyholder at the time of taking the Policy;
9. **“Beneficiary/Claimant”** means the person who is entitled to receive benefits under this Policy. The Beneficiary may be Life Assured or Policyholder or his Assignee or Nominees or proved Executors or Administrators or other Legal Representatives as the case may be;
10. **“Business Day” or “Working Day”** means the day on which the offices of the Company remain open for transactions with the public at the place where the concerned transaction is to be carried out;
11. **“Company” or “Corporation”** means Axis Max Life Insurance Limited;
12. **“Date of Commencement of Policy”** is the start date of this Policy;
13. **“Date of Commencement of Risk”** is the date on which the Company accepts the risk for insurance (cover) as evidenced in the Schedule of the Policy;
14. **“Date of Issuance of Policy”** means the date as specified in the Policy Schedule;
15. **“Date of Maturity”** means the date specified in the Schedule on which the Policy Term is completed;
16. **“Death Benefit”** means the benefit, agreed at the commencement of the contract, and means the amount as specified in the Policy bond and is payable on death of Life Assured as per the terms and conditions of the Policy;
17. **“Discharge Form”** is the form to be filled by Policyholder/Claimant to claim the Death Benefit/refund under the Policy;
18. **“Due Date”** (applicable in case of regular Premium / limited Premium payment) means a fixed date on which the Policy Premium is due and payable by the Policyholder;
19. **“Endorsement”** means conditions attached/ affixed to this Policy incorporating any amendments or modifications agreed to or issued by the Company;
20. **“Free Look Period”** is the period of 30 days beginning from the date of receipt of the Policy Document by the Policyholder to review the terms and conditions of this Policy and where the Policyholder disagrees to any of those terms and conditions or otherwise, if no claim has been made under the Policy, he/ she has the option to cancel this Policy as detailed in Condition 2 of Part D of this Policy Document;

21. **"Grace Period"** is the time granted by the insurer from the Due Date for the payment of Premium, without any penalty/ late fee, during which time the Policy is considered to be in force with the insurance cover without any interruption as per the terms of the Policy;
22. **"Inforce Policy"** means a Policy in which all the due Premiums have been paid and the Premiums are not outstanding;
23. **"IRDAI / Authority"** means Insurance Regulatory and Development Authority of India;
24. **"Lapse"** is the status of the Policy when due Premium is not paid within the Grace Period and the benefits under the Policy will cease from the date of such unpaid Premium;
25. **"Life Assured"** is the person on whose life the insurance cover has been accepted;
26. **"Material Information"** is the information already known to the Life Assured at the time of applying for Life Insurance, which has a bearing on Underwriting of the proposal /Policy submitted;
27. **"Nomination"** is the process of nominating a person(s) in accordance with provisions of Section 39 of the Insurance Act, 1938 as amended from time to time;
28. **"Nominee(s)"** means the person(s) nominated by the Policyholder (who is also the Life Assured) under this Policy who is(are) authorized to receive the claim benefit payable under this Policy;
29. **"Non-Participating"** means the Policy is not eligible for share of profit depending upon the Company's experience;
30. **"Policy Anniversary"** means one year from the Date of Commencement of the Policy and the same date falling each year thereafter, till the Date of Maturity;
31. **"Policy Cancellation"** means complete withdrawal or termination of the entire Policy before the stipulated Date of Maturity;
32. **"Policy Cancellation Value"** means an amount, if any, that becomes payable in case of cancellation in accordance with the terms and conditions of this Policy;
33. **"Policy/ Policy Document"** means this document along with Endorsements, if any, issued by the Company which evidences the contract of Insurance and Customer Information Sheet between the Policyholder and the Company;
34. **"Policyholder"** is the legal owner of this Policy;
35. **"Policy Term"** is the period, in years, as chosen by the Policyholder and mentioned in the Schedule, commencing from the Date of Commencement of Policy to the Date of Maturity;
36. **"Policy Year"** is the period between two consecutive Policy anniversaries. This period includes the first day and excludes the next Policy Anniversary day;
37. **"Premium"** is the contractual amount payable by the Policyholder at specified times periodically as mentioned in the Schedule of this Policy Document to secure the benefits under the Policy. The Premium payable will be "Total Single / Instalment Premium" which includes single / instalment Premium for Base Policy and instalment Premium for Rider(s), if Rider(s) has/have been opted for. The term 'Premium' used anywhere in this Policy Document does not include any taxes which are payable separately;
38. **"Premium Payment Term"** means the period, in years, during which Premium is payable;
39. **"Proof of Continued Insurability"** is the information that may be sought from the Policyholder to decide Revival of the Policy. This includes form of declaration of good health, medical reports, special reports and any such document as may be called for by the Company, in accordance with the board-approved Underwriting policy of the Company;
40. **"Proposer"** is a person who proposes the life insurance proposal;
41. **"Revival"** of a Policy means restoration of a lapsed Policy which was discontinued due to the non-payment of Premium, by the insurer with all the benefits mentioned in the Policy Document, with or without Rider

benefits if any, upon the receipt of all the Premiums due and other charges/late fee, if any, as per the terms and conditions of the Policy, upon being satisfied as to the continued insurability of the insured/ Policyholder on the basis of the information, documents and reports furnished by the Policyholder, in accordance with the then existing board-approved Underwriting policy of the Company;

42. **“Revival Period”** means the period of five consecutive years from the Due Date of first unpaid Premium or as is allowed under applicable Product Regulations, during which period the Policyholder is entitled to revive the Policy which was discontinued due to the non-payment of Premium;
43. **“Rider”** is an add-on benefit which the Proposer has purchased separately in addition to basic benefits as specified under this Policy Document;
44. **“Rider Premium”** is the Premium payable by the Policyholder which is in addition to the Premium paid under Base Policy towards the additional cover/benefit opted under the Rider, if opted;
45. **“Rider Sum Assured”** is the assured amount payable on happening of a specified event covered under the Rider, if opted;
46. **“Schedule”** is the part of Policy Document that gives the specific details of your Policy;
47. **“Sum Assured on Death”** is the life insurance cover opted by the Proposer and is the absolute amount of benefit which is guaranteed to become payable on death of the Life Assured in accordance with the terms and conditions of the Policy, as mentioned in Condition 1 (a) of Part C of this Policy Document;
48. **“Surrender”** means complete withdrawal / termination of the entire Policy before maturity;
49. **“Surrender Value”** means an amount, if any, that becomes payable in case of Surrender during the Policy Term, in accordance with the terms and conditions of this Policy;
50. **“Underwriting”** is the term used to describe the process of assessing risk and ensuring that the cost of the cover is proportionate to the risks faced by the individual concerned. Based on underwriting, a decision on acceptance or rejection of cover as well as applicability of suitable Premium or modified terms, if any, is taken;
51. **“UIN”** means the Unique Identification Number allotted to this plan by the IRDAI; and
52. **“Waiting Period”** means a period of 45 (forty-five) days from the Date of Commencement of Risk. In case of Revival of Policy, the Waiting Period shall not be applicable.

PART - C**BENEFITS**

1) The following are the benefits under the Policy:

a) Death Benefit:

- i) On death of the Life Assured during the Waiting Period and provided the Policy is in force, the Death Benefit amount payable as a lump sum is:
 - 1. In case of accidental death, for regular Premium or limited Premium payment Policy, equal to Sum Assured on Death which is the highest of:
 - a. 10 times the Annualized Premium, or
 - b. 105% of all Premiums Paid as on the date of death, or
 - c. Absolute amount assured to be paid on death.
 - 2. In case of accidental death, for single Premium Policy, equal to Sum Assured on Death which is the higher of:
 - a. 125% of single Premium; or
 - b. Absolute amount assured to be paid on death.
 - 3. In case of death due to other than accident, the Death Benefit is equal to 100% of all Premiums Paid excluding taxes, if any.
- ii) On death of the Life Assured after the expiry of Waiting Period but before the stipulated Date of Maturity and provided the Policy is in force, the Death Benefit amount payable as a lump sum is:
 - 1. For regular Premium or limited Premium payment Policy, "Sum Assured on Death" which is the highest of:
 - a. 10 times of Annualized Premium; or
 - b. 105% of all the Premiums Paid as on the date of death; or
 - c. Absolute amount assured to be paid on death.
 - 2. For single Premium Policy, "Sum Assured on Death" which is the higher of:
 - a. 125% of single Premium or
 - b. Absolute amount assured to be paid on death.

Premiums referred above shall not include any extra amount chargeable under the Policy due to Underwriting decision and Rider Premium(s), if any.

Absolute amount assured to be paid on death shall be an amount equal to Basic Sum Assured.

b) Maturity Benefit:

No Maturity Benefit shall be payable on the Life Assured surviving the stipulated Date of Maturity.

c) Rider Benefits:

No Rider will be applicable to this Policy.

2) Payment of Premiums (applicable in case of limited and regular Premium payment Policies only):

- a) The Policyholder has to pay the Premium on or before the Due Dates as specified in the Schedule of this Policy Document along with applicable taxes, if any.
- b) In case of death of Life Assured under an Inforce Policy wherein all the Premiums due till the date of death have been paid and where the mode of payment of Premium is other than yearly, balance Premium(s), if any, falling due from the date of death and before the next Policy Anniversary shall be deducted from the claim amount.

The Company does not have any obligation to issue a notice that Premium is due or for the amount that is due.

3) Grace Period (applicable in case of limited and regular Premium payment Policies only):

A Grace Period of 30 days where the mode of payment of Premium is yearly or half yearly and 15 days in case of monthly, is allowed for the payment of each renewal Premium. If the Premium is not paid before the expiry of the days of grace, the Policy lapses.

If the death of the Life Assured occurs within the Grace Period but before the payment of the Premium then due, the Policy will still be valid and the benefits shall be paid after deductions of the said unpaid Premium as also the balance Premium(s), if any, falling due from the date of death and before the next Policy Anniversary.

The above Grace Period will also apply to Rider Premiums which are payable along with Premium for Base Policy.

PART – D**CONDITIONS RELATED TO SERVICING ASPECTS****1) Proof of Age:**

The Premiums under the Policy are calculated based on the Age of the Life Assured as declared in the Proposal.

If the Age of the Life Assured has been misstated and if the correct Age of the Life Assured makes the Life Assured ineligible for this Policy, the Company may offer a suitable plan as per the then existing Underwriting norms. If the Life Assured does not wish to opt for the alternative plan or if it is not possible for the Company to grant any other plan, then the Policy shall be cancelled and the Premiums paid shall be refunded without interest, subject to deduction of stamp duty paid and the cost of medicals, if any. The Policy will terminate on the said payment.

If the correct Age of the Life Assured makes the Life Assured eligible for this Policy, revised Premium depending upon the Correct Age will be payable. Difference of Premium from inception will be collected with interest, if Age declared is higher and excess Premium collected will be refunded without interest, if Age is found to be lower.

The provisions of Section 45 of the Insurance Act, 1938 as amended from time to time shall be applicable.

2) Free Look Period:

- a) This is an option to review the Policy following receipt of Policy Document. The Policyholder has a Free Look Period of 30 days beginning from the date of receipt of the Policy Document, to review the terms and conditions of the Policy and where the Policyholder disagrees with any of those terms and conditions of the Policy, or otherwise, if no claim has been made under the Policy, the Policyholder have the option to cancel the Policy, stating the reasons for his objection. Upon receipt of Policyholder's request, if no claim has been made under the Policy, the Policy will terminate immediately and all rights, benefits and interests under the Policy will cease immediately. Then the Policyholder shall be entitled to a refund of the Premium paid subject only to the deduction of a proportionate risk Premium for the period of cover and expenses incurred by the Company on medical examination and stamp duty charges, if any, irrespective of the reasons mentioned.
- b) A request received by the Company for free look cancellation of the Policy shall be processed and Premium refunded within 15 days of receipt of the request, as stated vide (a) above.
- c) The Policy shall terminate on payment of this amount and all rights, benefits and interests under this Policy will stand extinguished.

3) Forfeiture provisions:

- a) In case of regular Premium and limited Premium payment Policies, if the Premium has not been paid in respect of this Policy and any subsequent Premium be not duly paid, all the benefits shall cease after the expiry of Grace Period from the date of first unpaid Premium and nothing shall be payable, and the Premiums paid till then are also not refundable.
- b) Forfeiture in Certain Other Events: In case any condition herein contained or endorsed hereon be contravened or in case it is found that any untrue or incorrect statement is contained in the proposal, personal statement, declaration and connected documents or any Material Information is withheld, then and in every such case this Policy shall be void and all claims to any benefit by virtue hereof shall be subject to the provisions of Section 45 of the Insurance Act, 1938, as amended from time to time.

4) Revival of lapsed Policies (applicable for regular and limited Premium Payment Policies):

- a) If the Policy has lapsed due to non-payment of due Premium within the days of grace, it may be revived during the life time of the Life Assured, but within the Revival Period and before the Date of Maturity, as the case may be, on payment of all the arrears of Premium(s) together with interest at a rate which shall be determined as follows:

No. of days between date of Revival and date of Lapse of Policy	Revival interest rateBasis	Currently Applicable Revival interest rate *
0-60	Nil	0.00%
61-180	RBI Bank Rate + 1% p.a. compounded annually on due Premiums	7.75%
>180	RBI Bank Rate + 3% p.a. compounded annually on due Premiums	9.75%

***Note:** The current applicable Revival interest rate is effective as on 1st July 2024 and is based on RBI Bank rate of 6.75% p.a. prevailing as on 31st March 2024. The 'RBI Bank Rate' for the financial year ending 31st March (every year) will be considered for determining the Revival interest rate and the same shall be made effective w.e.f. 01st July every year. The Revival interest rate is revised only if the 'RBI Bank Rate' changes by 1% or more from the 'RBI Bank Rate' used to determine the prevailing Revival interest rate (reviewed on every 31st March). For further details and the Revival interest rate applicable as on date, please refer to our website. <https://www.axismaxlife.com>

Any change in the basis of determination of interest rate shall be done only after prior approval of the Authority.

- b) In addition to the arrears of Premium with interest, Proof of Continued Insurability may be required for Revival of the discontinued Policy. The Company, however, reserves the right to accept at original terms, accept with modified terms or decline the Revival of a discontinued Policy. The Revival of the discontinued Policy shall take effect only after the same is approved by the Company and is specifically communicated to the Policyholder.
- c) If a lapsed Policy is not revived within the Revival Period but before the Date of Maturity, the Policy will automatically terminate. In case of regular Premium Policies, nothing shall be payable. However, in case of limited Premium payment Policies, the amount as payable in case of Surrender shall be refunded and the Policy will terminate.
- d) Revival of Rider, if opted for, will only be considered along with the Revival of the Base Policy and not in isolation.

5) Surrender: Surrender Value is not applicable under this Policy.

6) Policy Cancellation Value:

Policy Cancellation Value shall be payable:

- a) upon the Policyholder applying for the same before the stipulated Date of Maturity in case of single Premium Policy; or
- b) upon the Policyholder applying for the same before the stipulated Date of Maturity or at the end of Revival Period if the Policy is not revived, in case of limited Premium payment Policies.
- c) The amount payable shall be as follows:

i) Single Premium Policies:

The Policy Cancellation Value acquires immediately after receipt of single Premium and is calculated as follows:

$$= 70\% \times \text{single Premium paid} \times \frac{\text{unexpired Policy Term}}{\text{original Policy Term}}$$

Single Premium shall be inclusive of extra Premium, if any.

ii) Limited Premium Payment Term: 5 years or 10 years:

The Policy Cancellation Value acquires if at least two (2) consecutive full years' Premiums are paid and is calculated as follows:

$$= 70\% \times \text{total Premiums paid} \times \frac{\text{unexpired Policy Term}}{\text{original Policy Term}}$$

Total Premiums paid shall be inclusive of extra Premiums, if any.

d) No Policy Cancellation Value shall be payable in respect of regular Premium Policies.

7) Policy Loan: No loan will be available under this Policy

8) Termination of Policy:

The Policy shall immediately and automatically terminate on the earliest occurrence of any of the following events:

- a) The date on which death benefit becomes payable; or
- b) The date on which refund, if applicable, is settled, in case of cancellation of Policy; or
- c) The Date of Maturity; or
- d) On expiry of Revival Period, if the Policy has not been revived; or
- e) On payment of free look cancellation amount.

PART E

CHARGES

Not Applicable.

PART – F

OTHER TERMS AND CONDITIONS

- 1) **Assignment:** Assignment is allowed under this plan as per section 38 of the Insurance Act, 1938, as amended from time to time. The current provisions of Section 38 are contained in Annexure-1 of this Policy Document. The notice of Assignment should be submitted for registration to the office of the Company, where the Policy is serviced. You may request for written acknowledgement of the receipt of notice of assignment or transfer assignment for a Policy along with the necessary details and documents. Additional charges, not exceeding Rs. 100/- on each occasion may be applicable for granting a written acknowledgement of the receipt of notice of assignment or transfer assignment. This option is not available in case the Policy is sold under Married Woman's Property Act, 1874.
- 2) **Nomination:** Nomination by the holder of a Policy of life assurance on his/her own life is allowed as per Section 39 of the Insurance Act, 1938, as amended from time to time. The current provisions of Section 39 are contained in Annexure-2 of this Policy Document. The notice of Nomination or change of Nomination should be submitted for registration to the office of the Company, where the Policy is serviced. In registering Nomination, the Company does not accept any responsibility or express any opinion as to its validity or legal effect. You may request for a cancellation or change of nomination(s) for a Policy along with necessary details of substituted nominee. Additional charges, not exceeding Rs. 100/- on each occasion may be applicable for cancellation or change of nominee. This option is not available in case the Policy is sold under Married Woman's Property Act, 1874.
- 3) **Section 45 of the Insurance Act 1938:** The provisions of Section 45 of the Insurance Act 1938, as amended from time to time, shall be applicable. The current provisions are contained in Annexure-3 of this Policy Document.
- 4) **Suicide Exclusion:**
 - a) *Under regular / limited Premium Policy:*

This Policy shall be void if the Life Assured commits suicide at any time within 12 months from the Date of Commencement of Risk, provided the Policy is Inforce or within 12 months from the date of Revival and the Company will not entertain any claim except for 80% of the Premiums paid (excluding any extra amount if charged under the Policy due to Underwriting decisions, taxes and Rider Premiums, if any) till the date of death or the Surrender Value available as on the date of death whichever is higher, provided the policy is in force.

This clause shall not be applicable for a lapsed Policy as nothing is payable under such Policies.
 - b) *Under single Premium Policy:*

This Policy shall be void if the Life assured commits suicide at any time within 12 months from the Date of Commencement of Risk and the Company will not entertain any claim except 90 % of the single Premium paid (excluding any extra amount if charged under the Policy due to Underwriting decisions and Rider Premiums, if any), till the date of death or the Surrender Value available as on the date of death whichever is higher, provided the Policy is in force.
- 5) **Tax:**

Statutory Taxes, if any, imposed on such insurance plans by the Government of India or any other constitutional tax Authority of India shall be as per the tax laws and the rate of tax as applicable from time to time.

The amount of applicable taxes as per the prevailing rates, shall be payable by the Policyholder on Premiums (for Base Policy and Rider, if any) including extra amount if charged under the Policy due to Underwriting decisions, which shall be collected separately over and above in addition to the Premiums payable by the Policyholder.

The amount of tax paid shall not be considered for the calculation of benefits payable under the plan.

The tax benefits may be available as per prevailing tax laws. The Policyholder or the Nominee shall be liable for compliance of applicable tax provisions.

6) Normal requirements for a claim:

- a) **Death Claim:** The normal documents which the Claimant shall submit while lodging the claim in case of death of the Life Assured shall be claim forms, as prescribed by the Company, accompanied with original Policy Document, original/ attested copy of death certificate issued by the local/municipal authority, discharge summary / indoor case papers in case death happened due to medical reasons in a hospital, medical booklet / CGHS card details in case of defence and central government personnel, body transfer certificate / embassy documents / postmortem report whichever applicable in case of death in foreign country, complete passport copy in case of death in foreign country, identity proofs of the Claimants bearing their photographs and signatures, other life / health insurance details with claim history details, employer certificate with complete leave records (Form E), in case of a medical/natural death of the Life Insured, the attending physician's statement (Form C) and the medical records (admission notes, discharge/death summary, test reports, etc.), NEFT mandate form attested by bank authorities, copy of bank passbook / cancelled cheque of the Claimant, ITR for last 3 years / GST certificate in case of self employed, Bank statement of last 2 years of the Life Insured, any other documents or information required by Us for assessing and approving the claim request. NEFT mandate from the Claimant for direct credit of the claim amount to the bank account, proof of title, proof of death, medical treatment prior to the death (if any), school/ college/ employer's certificate, whichever is applicable, to the satisfaction of the Company. If the Age is not admitted under the Policy, the proof of age of the Life assured shall also be submitted.

In case of unnatural death or death on account of or arising from an accident, the Company may call for the copies of First Information Report (FIR), Panchnama and Post Mortem report. The Company may also call for additional documents as may be required by them.

Within 90 days from the date of death, intimation of death along with death certificate must be notified in writing to the office of the Company where the Policy is serviced. However, delay in intimation of the genuine claim by the Claimant, may be condoned by the Company, on merit, and where delay is proved to be for the reasons beyond his/her control.

- b) **Policy Cancellation:** In case of cancellation of the Policy, the Policyholder shall submit the Discharge Form along with the original Policy Document, NEFT mandate from the Claimant for direct credit of the claim amount to the bank account.

In addition to above, any requirement mandated under any statutory provision or as may be required as per law shall also be required to be submitted.

A Claimant can download the claim request documents from Our website : <https://www.axismaxlife.com> or can obtain the same from any of Our branches.

For any support or guidance in relation to claims, please contact us at Helpline No. – 1860 120 5577, Email: service.helpdesk@axismaxlife.com

- 7) Issuance of duplicate Policy:** The Policyholder can make an application for duplicate Policy on payment of Rs. 250/- upon loss of Policy Document along with other requirements as may be prescribed by the Company.

8) Jurisdiction:

The Policy shall be governed by the laws of India and the Indian Courts shall have jurisdiction to settle any disputes arising under the Policy.

9) Legislative Changes:

The terms and conditions including the Premiums and benefits payable under this Policy are subject to variation in accordance with the applicable laws and regulations.

10) Translation:

In the event of any conflict or discrepancy between any translated version and the English language version of this Policy contract, the English language version of this Policy contract shall prevail.

PART – G GRIEVANCE REDRESSAL MECHANISM

1) Grievance Redressal Mechanism:

1.1. All consumer grievances and/or queries may be first addressed to your agent or our customer helpdesk as mentioned below:

- a. Axis Max Life Insurance Limited, Plot 90C, Sector 18, Gurugram, 122015, Haryana, India, Helpline No. – 1860 120 5577, Email: service.helpdesk@axismaxlife.com or
- b. Any office of Axis Max Life Insurance Limited.

If our response is not satisfactory or there is no response within 14 (Fourteen) days, the complainant may file a written complaint with full details of the complaint and the complainant's contact information to the following official for resolution:

Grievance Redressal Officer,
Axis Max Life Insurance Limited
Plot No. 90C, Sector 18, Gurugram, 122015, Haryana, India
Helpline No. – 1860 120 5577 or (0124) 4219090
Email: service.helpdesk@axismaxlife.com.

2) Grievance Redressal Mechanism of IRDAI:

In case the Policyholder/complainant is not satisfied with the response or does not receive a response from the Company within 14 days, then the customer/complainant may approach the Grievance Cell of the IRDAI through any of the following modes:

- i. Calling Toll Free Number 155255 / 1800 4254 732 (i.e. IRDAI (Bima Bharosa Shikayat Nivaran Kendra)
- ii. Sending an email to complaints@irdai.gov.in
- iii. Register the complaint online at <http://www.igms.irdai.gov.in>
- iv. Website:- bimabharosa.irdai.gov.in
- v. Address for sending the complaint through courier / letter: Policyholder Protection & Grievance Redressal Department (PPGR), Insurance Regulatory and Development Authority of India, Survey No.115/1, Financial District, Nanakramguda, Gachibowli, Hyderabad-500032, Telangana, India Ph: (040) 20204000

3) Ombudsman:

- a. If the complainant are not satisfied with the redressal or there is no response within a period of 1 (One) month, or within 1 year after rejection of complaint by Us, for redressal of claims related grievances, Claimants can also approach Insurance Ombudsman (at the address mentioned in Annexure A or on the IRDAI website <https://www.irdai.gov.in> or on Council of Insurance Ombudsmen website at <https://www.cioins.co.in>) who provides for low cost, speedy arbitration to customers.

The Ombudsman, as per Insurance Ombudsman Rules, 2017, as amended, can receive and consider complaints or disputes relating to the matters such as:

- i. Delay in settlement of claims, beyond the time specified by Us.;
- ii. Any partial or total repudiation of claims by Us;
- iii. Disputes over Premium paid or payable in terms of insurance Policy;
- iv. Misrepresentation of Policy terms and conditions at any time in the Policy Document or Policy contract;

- v. Legal construction of insurance policies insofar as the dispute relates to claim;
- vi. Policy servicing related grievances against insurers and their agents and intermediaries;
- vii. Issuance of life insurance Policy, which is not in conformity with the proposal form submitted by You;
- viii. Non-issuance of any insurance document after receipt of the Premium
- ix. Any other matter resulting from non-observance or non-adherence to the provisions of any regulations made by the IRDAI with regard to protection of policyholders' interests or otherwise, or of any circulars, guidelines or instructions issued by IRDAI or of the terms and conditions of the Policy contract, in so far as they relate to issues mentioned at clauses (i) to (viii).

As per Rule 14 of the Insurance Ombudsman Rules, 2017, a complaint to the Insurance Ombudsman can be made only within a period of 1 (One) year after receipt of Our rejection of the representation or after receipt of Our decision which is not to Your satisfaction or if We fail to furnish reply after expiry of a period of one month from the date of receipt of the written representation of the complainant, provided the complaint is not on the same matter, for which any proceedings before any court, or consumer forum or arbitrator is pending.

Annexure A: List of Insurance Ombudsman

AHMEDABAD - Office of the Insurance Ombudsman, 6th Floor, Jeevan Prakash Bldg, Tilak Marg, Relief Road, Ahmedabad-380 001. Tel:- 079-25501201/02 Email: oio.ahmedabad@cioins.co.in. (State of Gujarat and Union Territories of Dadra & Nagar Haveli and Daman & Diu.)

BENGALURU - Office of the Insurance Ombudsman, Jeevan Soudha Bldg., PID No. 57-27-N-19, Ground Floor, 19/19, 24th Main Road, JP Nagar, 1st Phase, Bengaluru – 560 078. Tel.: 080-26652049/26652048 Email: oio.bengaluru@cioins.co.in. (State of Karnataka)

BHOPAL - Office of the Insurance Ombudsman, 1st Floor, Jeevan Shikha, 60-B, Hoshangabad Road, Opp. Gayatri Mandir, Arera Hills, Bhopal-462 011. Tel:- 0755-2769201/2769202/2769203 Email: oio.bhopal@cioins.co.in (States of Madhya Pradesh and Chhattisgarh.)

BHUBANESHWAR - Office of the Insurance Ombudsman, 62, Forest Park, Bhubaneswar - 751009. Tel:- 0674-2596461/2596455/2596429/2596003. Email: oio.bhubaneswar@cioins.co.in. (State of Odisha.)

CHANDIGARH - Office of the Insurance Ombudsman, S.C.O. No. 20-27, Ground Floor, Jeevan Deep Building, Sector 17-A, Chandigarh-160017. Tel:- 0172 - 2706468 Email: oio.chandigarh@cioins.co.in [States of Punjab, Haryana (excluding 4 districts viz, Gurugram, Faridabad, Sonapat and Bahadurgarh) Himachal Pradesh, Union Territories of Jammu & Kashmir, Ladakh and Chandigarh]

CHENNAI - Office of the Insurance Ombudsman, Fatima Akhtar Court, 4th Floor, 453, Anna Salai, Teynampet, Chennai-600 018. Tel:- 044-24333668 / 24333678 Email: oio.chennai@cioins.co.in [State of Tamil Nadu and Union Territories - Puducherry Town and Karaikal (which are part of Union Territory of Puducherry).]

DELHI - Office of the Insurance Ombudsman, 2/2 A, Universal Insurance Building, Asaf Ali Road, New Delhi-110002. Tel:- 011- 46013992/ 23213504/ 23232481 Email: oio.delhi@cioins.co.in (State of Delhi, 4 districts of Haryana viz, Gurugram, Faridabad, Sonapat and Bahadurgarh)

KOCHI - Office of the Insurance Ombudsman, 10th Floor, Jeevan Prakash, LIC Building, Opp to Maharaja's College Ground, M.G. Road, Kochi 682011. Tel : 0484-2358759 Email: oio.ernakulam@cioins.co.in (State of Kerala and Union Territory of (a) Lakshadweep (b) Mahe - a part of Union Territory of Puducherry.)

GUWAHATI - Office of the Insurance Ombudsman, "Jeevan Nivesh", 5th Floor, Near. Panbazar, S.S. Road, Guwahati- 781001(ASSAM) Tel:- 0361-2632204/ 2602205/ 2631307 Email: oio.guwahati@cioins.co.in (States of Assam, Meghalaya, Manipur, Mizoram, Arunachal Pradesh, Nagaland and Tripura.)

HYDERABAD - Office of the Insurance Ombudsman, 6-2-46, 1st Floor, "Moin Court", Lane Opp. Hyundai Showroom, A.C. Guards, Lakdi-Ka-Pool, Hyderabad-500 004. Tel : 040-23312122/ 23376991 / 23376599 / 23328709 / 23325325 Email: oio.hyderabad@cioins.co.in (State of Andhra Pradesh, Telangana and Yanam and part of the Union Territory of Puducherry.)

JAIPUR - Office of the Insurance Ombudsman, Ground Floor, Jeevan Nidhi II Bldg, Bhawani Singh Marg, Jaipur – 302005 Tel : 0141-2740363 Email: oio.jaipur@cioins.co.in (State of Rajasthan)

KOLKATA Office of the Insurance Ombudsman, Hindustan Building. Annexe, 7th Floor, 4, C.R. Avenue, Kolkata-700 072. Tel : 033-22124339/22124341 Email: oio.kolkata@cioins.co.in (States of West Bengal, Sikkim, and Union Territories of Andaman and Nicobar Islands.)

LUCKNOW - Office of the Insurance Ombudsman, 6th Floor, Jeevan Bhawan, Phase-2, Nawal Kishore Road, Hazratganj, Lucknow- 226001. Tel.: 0522 - 4002082 / 3500613 Email: oio.lucknow@cioins.co.in (Following Districts of Uttar Pradesh: Lalitpur, Jhansi, Mahoba, Hamirpur, Banda, Chitrakoot, Allahabad, Mirzapur, Sonbhadra, Fatehpur, Pratapgarh, Jaunpur, Varanasi, Gazipur, Jalaun, Kanpur, Lucknow, Unnao, Sitapur, Lakhimpur, Bahraich, Barabanki, Raebareli, Sravasti, Gonda, Faizabad, Amethi, Kaushambi, Balrampur, Basti, Ambedkarnagar, Sultanpur, Maharajgang, Santkabirnagar, Azamgarh, Kushinagar, Gorkhpur, Deoria, Mau, Ghazipur, Chandauli, Ballia, Sidharathnagar.)

MUMBAI - Office of the Insurance Ombudsman, 3rd Floor, Jeevan Seva Annexe, S.V. Road, Santacruz(W), Mumbai 400054. Tel : 022- 69038800/27/29/31/32/33 Email: oio.mumbai@cioins.co.in ([List of wards](#) under Mumbai Metropolitan Region excluding wards in Mumbai – i.e M/E, M/W, N , S and T covered under Office of Insurance Ombudsman Thane and areas of Navi Mumbai.)

NOIDA - Office of the Insurance Ombudsman, 4th Floor, Bhagwan Sahai Palace, Main Road, Naya Bans, Sector-15, Distt: Gautam Buddh Nagar, U.P. - 201301. Tel: 0120-2514252/2514253 Email: oio.noida@cioins.co.in (State of Uttarakhand and the following Districts of Uttar Pradesh: Agra, Aligarh, Bagpat, Bareilly, Bijnor, Budaun, Bulandshehar, Etah, Kannauj, Mainpuri, Mathura, Meerut, Moradabad, Muzaffarnagar, Oraiyya,

Pilibhit, Etawah, Farrukhabad, Firozbad, Gautam Buddh nagar, Ghaziabad, Hardoi, Shahjahanpur, Hapur, Shamli, Rampur, Kashganj, Sambhal, Amroha, Hathras, Kanshiramnagar, Saharanpur.)

PATNA - Office of the Insurance Ombudsman, 2nd floor, Lalit Bhawan, Bailey Road, Patna - 800001 Tel No: 0612-2547068, Email id : oio.patna@cioins.co.in (State of Bihar, Jharkhand.)

PUNE - Office of the Insurance Ombudsman, 3rd Floor, Jeevan Darshan Bldg, C.T.S. Nos. 195 to 198, N.C. Kelkar Road, Narayan Peth, Pune – 411030. Tel.: 020-24471175 Email: oio.pune@cioins.co.in (State of Goa and State of Maharashtra excluding areas of Navi Mumbai, Thane district, Palghar District, Raigad district & Mumbai Metropolitan Region.)

THANE - Office of the Insurance Ombudsman, 2nd Floor, Jeevan Chintamani Building, Vasant Rao Naik Mahamarg, Thane (West), Thane – 400604 Email id: oio.thane@cioins.co.in (Area of Navi Mumbai, Thane District, Raigad District, Palghar District and wards of Mumbai, M/East, M/West, N, S and T".) Tel No. 022-20812868/69

Annexure 1 to Policy Bond

Section 45 – Policy shall not be called in question on the ground of mis-statement after three years

Provisions regarding policy not being called into question in terms of Section 45 of the Insurance Act, 1938, as amended from time to time are as follows: 1.No Policy of Life Insurance shall be called in question on any ground whatsoever after expiry of 3 yrs from a. the date of issuance of policy or b. the date of commencement of risk or c.the date of revival of policy or d. the date of rider to the policy, whichever is later. 2.On the ground of fraud, a policy of Life Insurance may be called in question within 3 years from a. the date of issuance of policy or b.the date of commencement of risk or c.the date of revival of policy or d. the date of rider to the policy, whichever is later. For this, the insurer should communicate in writing to the insured or legal representative or nominee or assignees of insured, as applicable, mentioning the ground and materials on which such decision is based. 3. Fraud means any of the following acts committed by insured or by his agent, with the intent to deceive the insurer or to induce the insurer to issue a life insurance policy: a.The suggestion, as a fact of that which is not true and which the insured does not believe to be true;b. The active concealment of a fact by the insured having knowledge or belief of the fact; c.Any other act fitted to deceive; and d.Any such act or omission as the law specifically declares to be fraudulent. 4.Mere silence is not fraud unless, depending on circumstances of the case, it is the duty of the insured or his agent keeping silence to speak or silence is in itself equivalent to speak. 5. No Insurer shall repudiate a life insurance policy on the ground of fraud, if the insured / beneficiary can prove that the misstatement was true to the best of his knowledge and there was no deliberate intention to suppress the fact or that such mis-statement of or suppression of material fact are within the knowledge of the insurer. Onus of disproving is upon the policyholder, if alive, or beneficiaries. 6.Life insurance Policy can be called in question within 3 years on the ground that any statement of or suppression of a fact material to expectancy of life of the insured was incorrectly made in the proposal or other document basis which policy was issued or revived or rider issued. For this, the insurer should communicate in writing to the insured or legal representative or nominee or assignees of insured, as applicable, mentioning the ground and materials on which decision to repudiate the policy of life insurance is based.7.In case repudiation is on ground of mis-statement and not on fraud, the premium collected on policy till the date of repudiation shall be paid to the insured or legal representative or nominee or assignees of insured, within a period of 90 days from the date of repudiation.8.Fact shall not be considered material unless it has a direct bearing on the risk undertaken by the insurer. The onus is on insurer to show that if the insurer had been aware of the said fact, no life insurance policy would have been issued to the insured.9.The insurer can call for proof of age at any time if he is entitled to do so and no policy shall be deemed to be called in question merely because the terms of the policy are adjusted on subsequent proof of age of life insured. So, this Section will not be applicable for questioning age or adjustment based on proof of age submitted subsequently.

[Disclaimer: This is only a simplified version prepared for general information. You are advised to refer to the Insurance Act 1938 as amended from time to time for complete and accurate details.]

Annexure 2 to the Policy Bond

Section 39 - Nomination by Policyholder

Nomination of a life insurance policy is as below in accordance with Section 39 of the Insurance Act, 1938 as amended from time to time. The extant provisions in this regard are as follows: 1. The policyholder of a life insurance policy on his own life may nominate a person or persons to whom money secured by the policy shall be paid in the event of his death. 2. Where the nominee is a minor, the policyholder may appoint any person to receive the money secured by the policy in the event of policyholder's death during the minority of the nominee. The manner of appointment is to be laid down by the insurer. 3. Nomination can be made at any time before the maturity of the policy. 4. Nomination may be incorporated in the text of the policy itself or may be endorsed on the policy communicated to the insurer and can be registered by the insurer in the records relating to the policy. 5. Nomination can be cancelled or changed at any time before policy matures, by an endorsement or a further endorsement or a will as the case may be. 6. A notice in writing of change or cancellation of nomination must be delivered to the insurer for the insurer to be liable to such nominee. Otherwise, insurer will not be liable if a bonafide payment is made to the person named in the text of the policy or in the registered records of the insurer. 7. Fee to be paid to the insurer for registering change or cancellation of a nomination can be specified by the Authority through Regulations. 8. On receipt of notice with fee, the insurer should grant a written acknowledgement to the policyholder of having registered a nomination or cancellation or change thereof. 9. A transfer or assignment made in accordance with Section 38 shall automatically cancel the nomination except in case of assignment to the insurer or other transferee or assignee for purpose of loan or against security or its reassignment after repayment. In such case, the nomination will get affected to the extent of insurer's or transferee's or assignee's interest in the policy. The nomination will get revived on repayment of the loan. 10. The right of any creditor to be paid out of the proceeds of any policy of life insurance shall not be affected by the nomination. 11. In case of nomination by policyholder whose life is insured, if the nominees die before the policyholder, the proceeds are payable to policyholder or his heirs or legal representatives or holder of succession certificate. 12. In case nominee(s) survive the person whose life is insured, the amount secured by the policy shall be paid to such survivor(s). 13. Where the policyholder whose life is insured nominates a. parents or b. spouse or c. children or d. spouse and children or any of them, the nominees are beneficially entitled to the amount payable by the insurer to the policyholder unless it is proved that policyholder could not have conferred such beneficial title on the nominee having regard to the nature of his title. 14. If nominee(s) die after the policyholder but before his share of the amount secured under the policy is paid, the share of the expired nominee(s) shall be payable to the heirs or legal representative of the nominee or holder of succession certificate of such nominee(s). 15. The provisions of sub-section 7 and 8 (13 and 14 above) shall apply to all life insurance policies maturing for payment after the commencement of Insurance Laws (Amendment) Act 2015. 16. If policyholder dies after maturity but the proceeds and benefit of the policy has not been paid to him because of his death, his nominee(s) shall be entitled to the proceeds and benefit of the policy. 17. The provisions of Section 39 are not applicable to any life insurance policy to which Section 6 of Married Women's Property Act, 1874 applies or has at any time applied except where before or after Insurance Act, 1938 as amended from time to time, a nomination is made in favour of spouse or children or spouse and children whether or not on the face of the policy it is mentioned that it is made under Section 39. Where nomination is intended to be made to spouse or children or spouse and children under Section 6 of MWP Act, it should be specifically mentioned on the policy. In such a case only, the provisions of Section 39 will not apply.

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Annexure 3 to the Policy Bond

Section 38 - Assignment and Transfer of Insurance Policies

Assignment or transfer of a policy should be in accordance with Section 38 of the Insurance Act, 1938 as amended from time to time. The extant provisions in this regard are as follows: 1. This policy may be transferred/assigned, wholly or in part, with or without consideration. 2. An Assignment may be effected in a policy by an endorsement upon the policy itself or by a separate instrument under notice to the Insurer. 3.

The instrument of assignment should indicate the fact of transfer or assignment and the reasons for the assignment or transfer, antecedents of the assignee and terms on which assignment is made. 4. The assignment must be signed by the transferor or assignor or duly authorized agent and attested by at least one witness. 5. The transfer or assignment shall not be operative as against an insurer until a notice in writing of the transfer or assignment and either the said endorsement or instrument itself or copy thereof certified to be correct by both transferor and transferee or their duly authorised agents have been delivered to the insurer. 6. Fee to be paid for assignment or transfer can be specified by the Authority through Regulations. 7. On receipt of notice with fee, the insurer should Grant a written acknowledgement of receipt of notice. Such notice shall be conclusive evidence against the insurer of duly receiving the notice. 8. If the insurer maintains one or more places of business, such notices shall be delivered only at the place where the policy is being serviced. 9. The insurer may accept or decline to act upon any transfer or assignment or endorsement, if it has sufficient reasons to believe that it is a. not bonafide; b. not in the interest of the policyholder; c. not in public interest; or d. is for the purpose of trading of the insurance policy. 10. Before refusing to act upon endorsement, the insurer should record the reasons in writing and communicate the same in writing to policyholder within 30 days from the date of policyholder giving a notice of transfer or assignment. 11. In case of refusal to act upon the endorsement by the insurer, any person aggrieved by the refusal may prefer a claim to IRDAI within 30 days of receipt of the refusal letter from the insurer. 12. The priority of claims of persons interested in an insurance policy would depend on the date on which the notices of assignment or transfer is delivered to the insurer; where there are more than one instruments of transfer or assignment, the priority will depend on dates of delivery of such notices. Any dispute in this regard as to priority should be referred to the Authority. 13. Every assignment or transfer shall be deemed to be absolute assignment or transfer and the assignee or transferee shall be deemed to be absolute assignee or transferee, except a. where assignment or transfer is subject to terms and conditions of transfer or assignment OR b. where the transfer or assignment is made upon condition that i. the proceeds under the policy shall become payable to policyholder or nominee(s) in the event of assignee or transferee dying before the insured; or ii. the insured surviving the term of the policy. Such conditional assignee will not be entitled to obtain a loan on policy or surrender the policy. This provision will prevail notwithstanding any law or custom having force of law which is contrary to the above position. 14. In other cases, the insurer shall, subject to terms and conditions of assignment, recognize the transferee or assignee named in the notice as the absolute transferee or assignee and such persona shall be subject to all liabilities and equities to which the transferor or assignor was subject to at the date of transfer or assignment; b. may institute any proceedings in relation to the policy; and c. obtain loan under the policy or surrender the policy without obtaining the consent of the transferor or assignor or making him a party to the proceedings. 15. Any rights and remedies of an assignee or transferee of a life insurance policy under an assignment or transfer effected before commencement of the Insurance Laws (Amendment) Act, 2015 shall not be affected by this section.

[Disclaimer: This is only a simplified version prepared for general information. You are advised to refer to the Insurance Act, 1938 as amended from time to time for complete and accurate details]